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Board of Education Report

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Report of Correspondence

BOARD OF EDUCATION OF THE CITY OF LOS ANGELES
Governing Board of the Los Angeles Unified School District

February 7, 2023

REPORT OF CORRESPONDENCE

The following correspondence addressed to the Board of Education is submitted with the recommended Disposition, “Refer to Superintendent for referral to Office of the General Counsel to take all steps necessary to protect the interests of the Board of Education, including assignment to outside counsel; Controller to draw warrants in such amounts as may be necessary for the payment of costs and fees upon invoices as approved by the Office of the General Counsel”:

FROM	LEGAL ACTION
1. Bish & Cutting, APC	Summons and Complaint for Damages: 1) Motor Vehicle; 2) Property Damage; 3) Personal Injury; Case No. 22CHCV01022; Superior Court in the State of California for the County of Los Angeles; Keon Khatibi, Plaintiff, v. Los Angeles Unified School District; Does 1 through 10, Defendants
2. Douglas/Hicks Law	Summons and Complaint for Damages: 1) Negligence (Gov’t Code Section 815, 820); 2) Negligent Entrustment (Gov’t Code Section 815, 820); 3) Negligent Per Se (Gov’t Code Section 815, 820); Case No. 22STCV38408; Superior Court in the State of California for the County of Los Angeles; Julie Sexton, Plaintiff, v. Los Angeles Unified School District; Does 1 through 10, inclusive, Defendants
3. Downtown L.A. Law Group	Summons and Complaint for Damages: 1) Assault; 2) Battery; 3) Intentional Infliction of Emotional Distress; 4) Negligent Hiring, Supervision & Retention of an Unfit Employee; 5) Breach of Mandatory Duty; 6) Negligence; Case No. 22NWCV01156; Superior Court in the State of California for the County of Los Angeles; Jane Doe, a minor, by and through her GAL Melinda Castro, Plaintiff, v. Los Angeles Unified School District; Does 1 through 50, inclusive, Defendants
4. Gilbert & Stern LLP	Summons and Complaint for Personal Injury, Property Damage, Wrongful Death: 1) Motor Vehicle; 2) Property Damage; 3) Personal Injury; Case No. 22STCV26798; Superior Court in the State of California for the County of Los Angeles; Gregory Berkovich; Bronia Berkovich, Plaintiff, v. Los Angeles Unified School District; Does 1 through 25, inclusive, Defendants

5. Greenberg Gross LLP
Jeff Anderson & Associates
Summons and First Amended Complaint for Damages: 1) Negligence; 2) Negligent Supervision and Retention; 3) Sexual Battery; 4) Sexual Harassment; Case No. 22STCV35391; Superior Court in the State of California for the County of Los Angeles; John Doe 7067, Plaintiff, v. Los Angeles Unified School District; Does 3 through 20, inclusive, Defendants
6. Greenberg Gross LLP
Jeff Anderson & Associates
Summons and First Amended Complaint for Damages: 1) Negligence; 2) Negligent Supervision and Retention; 3) Sexual Battery; Case No. 22STCV39153; Superior Court in the State of California for the County of Los Angeles; James Eric Bunch, Plaintiff, v. Los Angeles Unified School District; Does 3 through 20, inclusive, Defendants
7. Greenberg Gross LLP
Jeff Anderson & Associates
Summons and First Amended Complaint for Damages: 1) Negligence; 2) Negligent Supervision/Retention; 3) Sexual Battery; 4) Sexual Harassment; Case No. 22NWCV01077; Superior Court in the State of California for the County of Los Angeles; Jane Doe 7064, an individual; Jane Doe 7035, an individual; and Jane Doe 7063, an individual, Plaintiffs, v. Los Angeles Unified School District; Does 3 through 20, Defendants
8. Herman Law
Summons and Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV38432; Superior Court in the State of California for the County of Los Angeles; A.B., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
9. Herman Law
Summons and Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV37727; Superior Court in the State of California for the County of Los Angeles; A.S., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
10. Herman Law
Summons and Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV26438; Superior Court in the State of California for the County of Los Angeles; Dwanda Stoval., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants

11. Herman Law
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 3 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 3 through 25); Case No. 22STCV26198; Superior Court in the State of California for the County of Los Angeles; Carol Lanehart-King, Plaintiff, v. Los Angeles Unified School District; Does 3 through 25, inclusive, Defendants
12. Herman Law
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 2 through 25); Case No. 22STCV31017; Superior Court in the State of California for the County of Los Angeles; D.P., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
13. Herman Law
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 2 through 25); Case No. 22STCV35801; Superior Court in the State of California for the County of Los Angeles; S.V., Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
14. Herman Law
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention and Supervision (School); 4) Negligent Hiring, Retention and Supervision (Does 2 through 25); Case No. 22STCV35618; Superior Court in the State of California for the County of Los Angeles; Victor Pena, Plaintiff, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants
15. Herman Law
Summons and First Amended Complaint for Damages: 1) Negligence (School); 2) Negligence (Does 2 through 25); 3) Negligent Hiring, Retention, and Supervision (School); 4) Negligent Hiring, Retention, and Supervision (Does 2 through 25); Case No. 22STCV37739; Superior Court in the State of California for the County of Los Angeles; A.M., Plaintiffs, v. Los Angeles Unified School District; Does 2 through 25, inclusive, Defendants

16. HJC Law Group, APC
Summons and Complaint for Damages: 1) Personal Injury; Case No. 21STCV02350; Superior Court in the State of California for the County of Los Angeles; Gal Chitrit, an Individual, by and through his Conservator, Pua Berman, Plaintiffs, v. Los Angeles Unified School District; Does 1 through 20, inclusive, Defendants
17. Jason Paul Halpern, A Professional Corporation
Summons and Complaint for Damages: 1) Negligence; 2) Negligent Hiring, Training and Supervision; 3) Negligent Infliction of Emotional Distress (Bystander); Case No. 22STCV25187; Superior Court in the State of California for the County of Los Angeles; Nalah Mena, A Minor, by and through her GAL, Vanessa Samuels, Plaintiff, v. Los Angeles Unified School District; Does 1 through 100, inclusive, Defendants
18. Law Office of James D. Lipschultz
Summons and Complaint on Public Works Payment Bonds and on Stop Payment Notices; Case No. 22STCV36820; Superior Court in the State of California for the County of Los Angeles; Morsco Supply, LLC, a Texas Limited Liability Company, dba Express Pipe & Supply, Plaintiff, v. Los Angeles Unified School District; Does 1 through 30, inclusive, Defendants
19. Law Offices of Craig P. Alexander
Verified Petition for Writ of Mandate; Complaint for Declaratory & Injunctive Relief; Case No. 22STCP04492; Superior Court in the State of California for the County of Los Angeles – Stanley Mosk Courthouse; California Policy Center, Inc., Petitioner and Plaintiff, v. Los Angeles Unified School District; Does 1 through 100, inclusive, Respondents and Defendants
20. PLC Law Group, APC
Summons and Complaint for Damages: 1) Equal Protection Violation of the California Constitution; 2) Violation of the California Civil Code 51 (Unruh Act); 3) Violation of the Bane Act (California Civil Code 52 and 52.1); 4) Negligence; Case No. 22STCV25903; Superior Court in the State of California for the County of Los Angeles; S.W., A Minor, by and through her GAL, Rashunda Pitts, Plaintiff, v. Los Angeles Unified School District; Does 1 through 10, inclusive, Defendants
21. Solouki & Savoy, LLP
Summons and Complaint for Damages and Demand for Jury Trial: 1) Negligence; 2) Negligent Supervision/Retention; 3) Sexual Battery; 4) Sexual Harassment; Case No. 22STCV40729; Superior Court in the State of California for the County of Los Angeles; Jane A.V. Doe, Plaintiff, v. Los Angeles Unified School District; Does 1 through 20, inclusive, Defendants

22. The Hettena Law Firm, LC
Summons and Complaint for Damages (Subrogation); Case No. 22CHLC28300; Superior Court in the State of California for the County of Los Angeles; Safeco Insurance Company of America, Plaintiff, v. Los Angeles Unified School District; Does 1 through 20, inclusive, Defendants
23. Watkins & Letofsky, LLP
Summons and Complaint for Damages: 1) Religious Discrimination – Violation of Government Code 12940(a, I) Et. Seq.; 2) Religious Discrimination – Failure to Engage in Interactive Process in Violation of Government Code 12940(1) Et. Seq.; 3) Religious Discrimination – Failure to Provide Reasonable Accommodations in Violation of Government Code 12940(1) Et. Seq.; 4) Harassment in Violation of Government Code 12940 Et. Seq.; 5) Retaliation in Violation of Government Code 12940(h, I) Et. Seq.; Demand for Jury Trial; Case No. 22STCV37796; Superior Court in the State of California for the County of Los Angeles; Roberto Emerick, Maryra Avina-Delgado, Scott Balian, Maria Cardona Mendez, Thomas Finke II, Carmen Hawa, Miurell Iraheta, Fabrice Milord, Plaintiffs, v. Los Angeles Unified School District; Does 1 through 50, inclusive, Defendants

The recommended disposition of the following item is “Refer to Superintendent for referral to the Office of the Risk Management and Insurance Services”:

<u>No.</u>	<u>Received From</u>	<u>Type of Damage</u>	<u>Claimant</u>	<u>Date of Damage</u>
24.	Alex Placencio	Damages	Alex Placencio	07-01-22
25.	Jakelin Mercado	Damages	Anahi Lainez Mercado	09-30-22
26.	Debra A. Postil	Damages	Andre Brown	1977
27.	Elan Zektser	Damages	Davit Kapanjyan	11-08-22
28.	Eddie Dennis	Damages	Emerson Mark Bradley Mikasa	08-18-22

29.	Jeffrey L. Molchan, Esq.	Damages	Jennifer Chavez	08-25-22
30.	Isabel Alvarez	Damages	Michael Anthony Delgado	06-28-22
31.	Arash H. Zabetian	Damages	Neah Vaughn	08-29-22
32.	Quincy Johnson	Damages	Quincy Johnson	12-05-22
33.	Sholanda Coleman	Damages	Sholanda Coleman	Feb. 2022
34.	Kelly Goldner	Vehicle Damages	21 st Century Insurance Company ASO Eeve Sork	05-11-22
35.	Rafi Sarukhanyan, Esq.	Vehicle Damages	Avo Kamarzari	12-17-22
36.	Robin Saghian	Vehicle Damages	Christina Guevara	07-25-22
37.	Fred Vazquez	Vehicle Damages	Fred Vazquez	01-09-23
38.	Kambiz Drake	Vehicle Damages	Hamid Kohan Darvish	11-06-22
39.	Jane Kang	Vehicle Damages	Jane Kang	11-10-22
40.	Luis Alonzo Martinez	Vehicle Damages	Luis Alonzo Martinez	12-02-22

41.	Makoto Nakayama	Vehicle Damages	Makoto Nakayama	12-13-22
42.	Andrew Villanueva	Vehicle Damages	Mercury Insurance Company	09-29-22
43.	Alan A. Pace	Vehicle Damages	Michael Shane Beeson	12-20-22
44.	Ryan Ervin	Vehicle Damages	Oscar Osorio	03-03-22
45.	Daniel Setareh	Vehicle Damages	Pedro Cite	11-16-22
46.	Pedro Lemus	Vehicle Damages	Pedro Lemus	12-20-22
47.	Arpi Galstian	Vehicle Damages	Rodante Castillo Faustino	12-09-22

**WILLIAMS UNIFORM COMPLAINT
QUARTERLY REPORT SUMMARY
2nd Quarter 2022/2023**

DISTRICT NAME: Los Angeles Unified School District

DATE: January 6, 2023

QUARTER COVERED BY THIS REPORT:

October, November, and December 2022

	Number of Complaints Received in Quarter	Number of Complaints Resolved	Number of Complaints Unresolved
Textbooks and Instructional Materials	1	1	0
Facility Conditions	22	15	7 *
Teacher Vacancy or Misassignment	1	1	0
Totals	24	17	7

Please note: The 7 unresolved complaints are still within the 30-day deadline. Pending investigation responses; due by 1/20/2023 & 1/23/2023. Please refer to the Q2 Williams UCP Summary Report for more information.

SUBMITTED BY:  Julie Hall-Panameño

TITLE: Director, Educational Equity Compliance Office

Williams Project
Record Distribution Report
2022-2023 – 2nd Quarterly Report
1/5/2022

Board Member							
Board Member	Gross UCPs	Non-Wms UCPs	Net Wms UCPs	IM	MO	HR	Total
1	10		10		9	1	10
2	5		5	1	4		5
3	1		1		1		1
4	5		5		5		5
5	1		1		1		1
6	0		0		0		0
7	2		2		2		2
Other/Districtwide							
Not Applicable							
TOTAL	24	0	24	1	22	1	24
Local District							
Local District	Gross UCPs	Non-Wms UCPs	Net Wms UCPs	IM	MO	HR	Total
Northeast	0		0				0
Northwest	1		1		1		1
South	2		2		2		2
East	4		4	1	3		4
West	15		15		14	1	15
Central	2		2		2		2
Non-Public							
Not Applicable							
DACE							
TOTAL	24		24	1	22	1	24
Subject Area							
Subject Area	Gross UCPs	Non-Wms UCPs	Net Wms UCPs				
IM	1		1				
MO	22		22				
HR	1		1				
Non-Williams							
TOTAL	24	0	24				
2022-2023 UCPs							
Quarter	Net UCPs	IM	MO	HR			
Q1	92	0	92	0			
Q2	24	1	22	1			
Q3							
Q4							
TOTAL	116	1	114	1			

Legend: UCPs=Uniform Complaint Procedures: Wms=Williams: IM=Instructional Materials/Textbooks: MO=Facilities:
HR=Human Resources (Teacher Assignments)

MINUTES